

CHAPTER 2

The Uses and Abuses of Incarceration: Punishment, Dehumanization, and Slavery

Black radical anti-prison theory has deep roots, initially arising out of concerted efforts to free political prisoners, resist political repression, and defend against the increasingly warlike machinery of law enforcement. Today's critiques of prisons have grown more complex, encompassing a wider range of objections to the practice. Consider Angela Davis. Since her incarceration at Marin County Jail and her ultimate acquittal, the philosopher and scholar-activist's opposition to prisons has been less about open revolutionary conflict with the state, and more focused on a critique of the practice of imprisonment and the social conditions that (appear to) make this practice necessary. This book, in essence, grew out of my examination of these and other abolitionist criticisms.

Let's begin with two of Davis's most influential objections to the prison system. These objections make clear why the term

“abolition”—given its nod to celebrated attempts to end the dehumanizing practice of slavery—is regarded as the appropriate language to demand an end to the use of prisons. Davis maintains that imprisonment is a dehumanizing practice, a form of treatment that no human being, regardless of their behavior or attitudes, should be subjected to. She also argues that prisons, in the United States at least, are linked to the practice of slavery in ways that make imprisonment deeply objectionable, and particularly intolerable for African Americans. There is merit and insight in each of these objections. So let’s consider their strengths and weaknesses and whether they provide sufficient grounds to reject a prison-reform framework or to end the practice of imprisonment. But before turning to that examination, we need greater clarity about our principal subject—prison.

What Is a Prison?

In 1946, Malcolm X was imprisoned at the Charlestown State Prison in Massachusetts. Describing his experience there in his famous autobiography, he noted how his official prison number came to displace his name and truncated his identity, and that this was a common and degrading experience for prisoners adapting to institutional life. He also said that the bars of his cell made an indelible mark on his mind, making him feel like he was in a cage, and that cell bars were an impediment to any kind of rehabilitation. Prisoners readily purchased illegal drugs and other contraband from unscrupulous guards, and they were forced to make license plates for the state as part of their work assignments. Malcolm remarked: “The cells didn’t have running

water. The prison had been built in 1805—in Napoleon’s day—and was even styled after the Bastille. In the dirty, cramped cell, I could lie on my cot and touch both walls. The toilet was a covered pail; I don’t care how strong you are, you can’t stand having to smell a whole cell row of defecation.”¹ (After the infamous “Cherry Hill” prison riot, the facility was permanently closed in 1955.²)

In 1948, after a brief stint at Concord Prison, Malcolm (with the help of his sister Ella Collins) was transferred to Norfolk Prison, which was known for its focus on rehabilitation. Compared to Charlestown or Concord, Malcolm regarded Norfolk as “a heaven”: “It had flushing toilets; there were no bars, only walls—and within the walls, you had far more freedom.”³ He also noted that each prisoner had their own room, had access to a large library, and was permitted visitors every day; and that professors from Harvard and other area colleges participated in the prison’s educational programs.

When faced with descriptions of prisons like Charlestown or having been imprisoned in such repulsive places, many abolitionists have no doubt been inspired to dismantle the prison system. But while reformers too are inspired by such descriptions and experiences, they are moved to improve the practice rather than end it. Because prison conditions vary and some prisons are better than others, to decide whether to be a reformer or an abolitionist, it is necessary to know what a “prison” is and not just what some prisons are like. We need to identify which features of prisons are necessary characteristics (the elements that make a prison a prison), and which features are merely contingent and thus can be discarded or altered without dismantling the prison system entirely. I won’t pretend that

there is some ideologically neutral conception of a prison. Nor do I aim to provide a conception of the “ideal” prison. But I hope to offer a conception that reformers and abolitionists can accept, so that the disagreement turns, not on contentious or question-begging definitions, but on whether the familiar practice of imprisonment is one that, on moral or political grounds, should be abandoned.

To incarcerate is to subject a person to institutional confinement. Imprisonment, and thus “prison,” is a type of incarceration. Incarceration, broadly conceived, has at least five elements. It entails *involuntary confinement*—restriction to a limited space with no right to leave without permission from authorities. This socio-spatial site of confinement is an *enclosed space* with a physically secure perimeter—walls, fences, locks, and guards—to prevent escape and unauthorized entry. Incarceration is not just a building with people locked inside. It is a *hierarchical institutional practice* defined by a set of rules, roles, and goals. These rules and roles vary with the overall justificatory aims of the institution (and sometimes with the covert purposes of its officials). Persons confined to carceral spaces are *isolated from the general public*—separated from others in the outside world (and sometimes from one another) and with highly restricted (if any) rights to visitation and to communicate with those outside (and sometimes within) the facility.

Importantly, these confined persons are in the *custody* of carceral authorities. Custody is a form of guardianship, which includes providing shelter, basic necessities, physical care, and protection from harm (including self-harm). If the incarcerated person is a known danger to others or to themselves, then they must sometimes be deprived of items that could inflict grave

bodily harm. Providing adequate care and protection will sometimes require surveillance, searches, the enforcement of rules of order, or periods of confinement in a cell.⁴

Incarceration, so understood, can be used for a variety of purposes. Some of these purposes are legitimate: for instance, incarceration can be used to quarantine those with highly infectious and deadly diseases or to hold enemy combatants in times of war. Some uses of incarceration are clearly illegitimate: to keep a population available for exploitation, to repress political dissent, to torture people, or to use them for medical experiments.

Even within the context of crime control, incarceration can have several purposes. For example, there is pretrial detention. Such detention raises several issues for the reform-versus-abolition question. But I will leave these aside until later (Chapter 4). For now, my focus will be incarceration when its official purpose is *punishment*—a penalty for committing a crime. Indeed, Davis uses the phrase “punitive incarceration” to differentiate it from incarceration as detention while the prisoner awaits trial or a hearing.⁵ In this book, I leave aside the complex issue of carceral detention for unlawful immigration or border crossing and its relationship to abolition.⁶ This issue depends on resolving the challenging question of whether national borders should be enforced, controlled, or even exist, which I am not prepared to address here.⁷

An incarceration facility whose primary purpose is pretrial detention is a *jail*. We can call an incarceration facility whose primary purpose is prisoner rehabilitation a *penitentiary*. An incarceration facility that aims to treat and house those who suffer from serious psychological disorders is a *psychiatric*

hospital. An incarceration facility that functions to impose punishment is a *prison*. These aims—detention, rehabilitation, treatment, and punishment—can be, and often are, combined within the same facility. Davis and other abolitionists oppose jails, penitentiaries, and prisons. So, for simplicity, I will refer to all three practices as “imprisonment” or simply “prison.”

According to Davis, in the pre-modern era, before the emergence of capitalism and the nation-state, punishment was almost entirely *corporal*, from beatings to execution.⁸ It is only with the rise of the bourgeois state that we get the general practice of punishment through incarceration: “Before the acceptance of the sanctity of individual rights, imprisonment could not have been understood as punishment. If the individual was not perceived as possessing inalienable rights and liberties, then the alienation of those rights and liberties by removal from society to a space tyrannically governed by the state would not have made sense.”⁹ I am not convinced that this historical claim is entirely accurate.¹⁰ Regardless, if the debate between reformers and abolitionists is to be a meaningful one, this way of thinking about punishment and its relation to incarceration has limitations.

I suggest that punishment, whatever form it takes, be understood as unwelcome and unpleasant treatment. Such “hard treatment,” as it is sometimes called, includes deprivation (whether of liberty, money, property, privileges, human contact, or life itself) as well as involuntary labor, public censure, humiliation, and so on. This definition is neutral between a range of justifications of punishment, including retribution and crime prevention. The hard-treatment conception of punishment is both narrower and broader than Davis’s conception of

punishment. It is narrower in that imprisonment as penalty need not imply that prisoners have forfeited all their rights thus permitting tyrannical treatment. If imprisonment entails that prisoners are rightless subjects under despotic rule, then prisons, at least in the United States, have already been abolished, as prisoners have many recognized rights—though not nearly all to which they are entitled.¹¹

The conception of punishment I am suggesting is broader in that the forms of penalty need not be conceived as the deprivation of rights. Contrary to what Davis suggests, a conception of individuals as rights-bearers is not necessary for incarceration as punishment to make sense. Being held in a prison and subject to its rules would be regarded by almost anyone as deeply unpleasant and something to be avoided and so can serve as a deterrent or as retribution regardless of whether there is public recognition of individual rights. Prison also separates prisoners (if only temporarily) from their community and so functions similarly to banishment, which certainly existed in pre-modern eras. So I will operate with this broader conception of punishment—unwelcome and unpleasant treatment as penalty for a criminal offence.

A word about *incapacitation* through incarceration. It is, unfortunately, sometimes necessary to rely on incarceration to incapacitate highly dangerous individuals. There is a conceptual and a moral difference between incarcerating persons to prevent them from harming others (by restricting their movement to a highly limited and enclosed space) and incarcerating persons to penalize them for harmful actions they have already taken. Yet when carceral incapacitation is imposed in response to a criminal offense, it is practically indistinguishable from

punishment. The same can be said when carceral incapacitation of a criminal offender is combined with rehabilitation or psychiatric treatment. These are all ways of using incarceration to respond to crime, where the hard treatment is triggered by and takes place only after a criminal offense. The same cannot be said of carceral incapacitation when it is used for the quarantine of those with deadly communicable diseases, for the involuntary commitment of mentally ill patients who have not perpetrated crimes, or for the confinement of enemy combatants in wartime. These incarcerated persons are regarded as dangerous enough to justify confining them, but their confinement is not punishment or even akin to punishment.

It is not possible to settle the reform-versus-abolition question without some engagement with the debate over the justification of punishment as such. What, if anything, justifies penalizing someone for breaking the law? I won't pursue this question in depth, as there is a vast philosophical literature on the subject, with intricacies that don't bear directly on our question.¹² But a few remarks are in order.

Davis does not regard *retribution* as a sound justification for punishment. That is, she does not think that the public has a right to seek revenge or to retaliate against those who break the law. She does not believe that those who do wrong, even serious wrong, "deserve" to suffer; nor does she accept that a criminal offender's misery has intrinsic value or could be in itself justice. She denies that people should suffer in proportion to the suffering they have wrongfully caused. The idea that bad people deserve prison is, she maintains, an ideological or sectarian notion.¹³ As such, it is unsuitable as a public justification for

coercion or confinement in a democratic society. Retributivism is a complex doctrine, with many variants. It also has undeniable intuitive appeal to many and is consonant with widely held religious views. Nevertheless, I am largely in agreement with Davis in not accepting retributive justifications of punishment, though I will not defend this stance in the present book. Nothing I say here about “punishment” or “penalties” should be construed as endorsing retributive ideas.

Yet, while these objections pose obstacles for retributive defenses of punishment, they do not stand in the way of punishment when it is used as a method for preventing or reducing crime. Penalizing crime through incarceration is plausibly and widely viewed as an effective and fair way to prevent and control criminal wrongdoing—as a means for a society to provide a reasonable level of security for our persons, liberties, and rightful possessions. Retribution or retaliation need not be part of incarceration’s aim. Unless abolitionists equate all punishment with retribution, they are best understood as claiming (among other things) that the need to prevent and control crime is an inadequate justification for the use of prisons.

I regard imprisonment as justified only if milder penalties are insufficient to control crime adequately. As with self-defense and just war measures, we should cause no more suffering than is necessary to protect people from harmful wrongdoing. Prisons should also not be used unless there are good reasons to believe they help to prevent crime (an issue I will address in Chapter 5). Prisons would indeed be obsolete—and immoral—if they are unnecessary or incapable of reducing crime.

I also agree with Davis that incarceration should not be the primary method for preventing crime. Imposing a prison sentence

should not be the first answer nor the default response to criminal wrongdoing. Less harmful alternatives should be considered and prioritized, relying on prisons as a last resort. Moreover, much crime is a symptom of underlying structural injustices that demand redress, and thus some crime could be prevented by creating more just social conditions. I also agree with Davis therefore that many societies—and especially the United States—grossly *overuse* punitive incarceration. Even under more just circumstances than prevail in the United States, I would favor using fines and property confiscation, community service and other work assignments, restitution and reparation, electronic monitoring, home confinement, supervised probation, and the loss of certain privileges (for example, suspension of driver's license) for most criminal offenses.¹⁴ Incarceration is a drastic crime-control measure, best reserved for the most serious offenses and for those offenders who, even after suffering less severe penalties, continue to show disregard for others' basic rights.

By “the most serious crimes,” I mean offenses that do great and irreparable harm or crimes that cause deep and lasting trauma, such as homicide, rape, and aggravated assault. Major white-collar or corporate crime can sometimes cause immense harms that can't be repaired. Misdemeanors, though sometimes punished with short prison sentences, are not serious crimes. Not all felonies—legally prohibited actions punishable by more than a year of incarceration—count as “the most serious” on my account either. For instance, many property crimes (auto theft, burglary, and larceny) and some types of fraud (credit-card fraud, passing bad checks, and forgery) are considered felonies in the United States but generally do not cause great

and irreparable harm or lasting trauma. A similar thing could be said about some drug offenses and the illegal possession of firearms. Perhaps under some circumstances, imprisonment can be justifiably used to penalize these less serious offenses. But if we find that imprisonment is legitimately used to prevent the most serious crimes, then that would go a long way toward showing that prison reform remains an appropriate goal.

Few would deny that actions that are wrong and cause harm should sometimes be penalized to reduce the incidence of such actions. Inexcusable harmful wrongdoing should have “consequences,” where these consequences involve some unwelcome and unpleasant treatment. Otherwise, many who commit such acts are likely to repeat them; and others, noticing that these acts have been undertaken without negative consequence, will be encouraged to engage in similar acts themselves. Consider speeding and other reckless driving, which leads to thousands of deaths and serious injuries each year in the United States. Abolitionists need not reject *all* punishments as unjustified. A world where no action incurs a penalty is not the demand. They simply deny that incarceration is among the permissible punishments for wrongdoing.

So why prison? After all, there are less harmful penalties available. I think the first thing to say is that imprisonment is likely the harshest penalty a society can impose that also plausibly satisfies human rights requirements. Some penalties, though still used in a few places, are too harsh and inhumane, for example, maiming and death. No one should be subjected to these, even for serious wrongdoing. Other penalties are too mild to deter serious crimes. A fine or community

service is unlikely to be severe enough to discourage murder or rape.

Another reason prison could sometimes be the right kind of penalty is that there is on occasion a need to protect the vulnerable from imminent harm. Imprisonment is a way of temporarily incapacitating a dangerous individual. Other penalties prevent crime primarily by way of deterrence, a threat which some will inevitably fail to heed. Home confinement comes closest to incapacitation. But here, the perimeter of the residence is not secure, so the offender could leave the home (even if electronically monitored) and anyone could enter. Such confinement provides only limited protection for those outside or inside the home. It is true, imprisonment cannot completely prevent a prisoner from harming others (for instance, fellow prisoners, prison staff, or visitors), and occasionally prisoners escape. But the personnel, physical structure, and rules of a prison can provide greater security from imminent attack than any viable and nonlethal alternative.

During the period of institutional confinement, a prisoner might learn to better control their antisocial impulses or to change the habits of mind that led them to harm others. The isolation and structure of prison can be an opportunity for serious reflection, a chance to reconsider how one should live and relate to others, which the prisoner may not have done otherwise or even realized they needed to do. If suitably staffed and organized, prison can be a space for rehabilitation, which is itself a way to prevent and control crime, as most prisoners are, in time, released back into the public.

Given these considerations—that is, the possible effectiveness of carceral deterrence, incapacitation, and rehabilitation—it is

easy to see how a people, concerned to protect the basic rights of its members, might adopt the practice of imprisonment without being motivated by malice, vengeance, cruelty, or greed. Prisons hold out the promise that harmful wrongdoing can be controlled with minimal violence and that prisoners, after rehabilitation, can eventually rejoin the community on equal terms. Unlike with the deadly harm and destruction traded between nations at war, a people would naturally be reluctant to resort to lethal force when dealing with the unjust aggression of its own members, provided a suitable alternative was available.

Some naturally look upon prisons in horror. To contemplate being locked inside a prison cell or an enclosed facility is the stuff of nightmares. It is not at all surprising many have come to think that only a diabolical mind could have dreamed up such an institution. Yet, without denying the terrifying prospect that a prison sentence represents, I believe it is understandable why a people might use prisons to reduce crime in its midst, particularly once the penalties of exile, torture, maiming, and death have been repudiated as immoral. Imprisonment may nonetheless be an objectionable punitive practice for the reasons abolitionists cite. Let's turn now to those objections.

Dehumanization, Agency, and Preventative Force

The imprisonment of humans is often likened to the caging and torturing of animals. Prisons are thought to impose prolonged discomfort and daily torment. Some abolitionists believe that

by virtue of being incarcerated, prisoners are marked as less than fully human or are treated in ways that no human should be. They maintain, in other words, that imprisonment is incompatible with basic human dignity. This position is different from claiming that dehumanizing and inhumane practices exist in many prisons, particularly American prisons, a claim that many reformers would strongly endorse. Not all these troubling practices are essential to punitive incarceration—for example, routine and invasive strip searches; using prisoner numbers (instead of given names) when directly addressing incarcerated persons; requiring humiliating and stigmatizing prisoner uniforms; or discussing prisoners as if they were subhuman or animals in need of taming. Ending these and similar practices would not constitute abolishing prisons, only reforming them.

Davis sometimes cites dehumanizing and inhumane aspects to existing prison practices that reformers are, and have long been, at pains to change. Many of these changes are clearly feasible, because they have already been instituted in some prison systems around the world (for instance, in prisons in Norway, the Netherlands, and Germany) and in some U.S. states.¹⁵ These changes include increasing the standard size of prison cells; limiting cells to one occupant to enable greater privacy; eliminating facility overcrowding; providing proper ventilation, heating, and cooling; ensuring regular access to natural light and fresh air; requiring thorough screening and extensive training for prison staff; increasing staff levels to avoid reliance on gangs and routinization to ensure order; providing high quality and essential medical care (physical and mental); maintaining sanitation and a healthy physical environment to prevent illness, the spread of disease, and pest infestation; prohibiting the shackling

of prisoners while they are in labor or giving birth; allowing persons who have recently given birth to be housed with their newborns to enable proper bonding; facilitating frequent interaction and communication between prisoners; permitting regular phone calls to and visits from family and friends; ensuring adequate nutrition and opportunities for exercise and recreation; providing supplies for personal hygiene; facilitating religious observance and honoring religious freedom; maintaining a well-stocked and wide-ranging library; and protecting prisoners from prisoner and guard violence, including sexual assault. A number of these conditions are not met in super-maximum-security facilities, which is why many reformers oppose them on human rights grounds.¹⁶ There is also broad opposition to extended periods in solitary confinement, which is arguably a form of torture and sometimes causes irreparable psychological harm.¹⁷

Human beings are like other animals in many ways. We share several welfare interests with them. Yet, unlike other animals, we do not act merely from instinct, impulse, or habit. We have the capacity to consciously reflect on possible courses of action and to successfully resist the temptation to act on urges, even powerful ones. We are also capable of deliberately treating others either justly or unjustly, with kindness or cruelty. Not mere possible recipients of just and humane treatment, we have the capacity to accord others the respect and treatment they are owed. No creature should be made to suffer needlessly or regarded as lacking all value. But as creatures capable of rationality and agency, of reasoned deliberation and conscious choice, human beings are to be treated in a way that honors our status as rational agents, as *persons* and not merely as animals.

Imprisonment, even if humane, might therefore be deemed inherently dehumanizing insofar as it fails to respect prisoners' status as persons.

To respond to abolitionist concerns, reformers must explain how imprisonment, despite the deprivation and suffering it inevitably imposes on prisoners, is compatible with respect for persons as free and rational.¹⁸ They should also make clear that they have a realistic and nonideological conception of human agency such that it is fair to sometimes impose prison as a penalty for serious crimes. And reformers need to show that the interests protected by using imprisonment are sufficiently weighty to justify such a severe crime-control measure.

Human beings should not be treated as if they were mere objects to be manipulated for this or that purpose, even when the purpose is a worthy one (for example, public safety). To regard someone as an agent—and so to accord them the dignity they are due as a human being—is to view them as capable of rational deliberation and choice. To respect this agency, we should appeal to others through reasons. In the practical realm, there are *moral* and *prudential* reasons. We offer moral reasons to others when we draw their attention to a valid moral consideration (say, that murder needlessly ends a life of inherent and irreplaceable value), which some may nevertheless discount or ignore. We offer prudential reasons when we make others aware of how a course of action could diminish their own well-being or cause them harm. A threat, say, a warning of a pending legal sanction, provides a prudential reason, which the targeted person can choose whether to heed. Criminal laws, when just, provide both kinds of reasons—a morally grounded prohibition and a sanction for noncompliance.

The requirement to refrain from using physical violence (except in self-defense, in defense of others from imminent attack, or in a just war) is a moral duty that almost any adult (and many children) can be expected to know they have and to comply with. Parents, teachers, and religious leaders instruct youth to conduct themselves nonviolently and to avoid needlessly harming others. The law codifies this duty when it prohibits murder, rape, robbery, and assault. With some crimes, such as a violent act that required planning, and which thus the perpetrator had time to reconsider carrying it out, we confront an especially grave wrong that warrants an appropriate, even coercive, response. It is such manifest unwillingness to respect others' right to be free from physical aggression that sometimes justifies our resorting to credible threats (negative incentives) to prevent wrongful harms.

Those greatly burdened by social injustices (and, at times, their more privileged allies) will sometimes justifiably break the law and evade law enforcement. They may do so for reasons of pressing economic need, self-defense against illegitimate state violence, or political resistance. The psychological and social pressures of oppression can make it difficult to remain within legal bounds while also maintaining one's dignity; or these pressures may compel or tempt one to break the law for completely understandable or even excusable reasons (for example, because of reasonable anger or the need for catharsis). Some of what is generally considered "crime" may be activities that no state should prohibit or punish (for instance, some drug use or sex work).

Matters are different with the kinds of serious wrongs I have in mind. The moral considerations against murder and rape, for example, provide sufficient and overriding reasons to refrain

from these egregious wrongs, which cause great and irreparable harm and severe trauma. The fact that a person is oppressed can neither override these reasons nor render them inapplicable. The need to protect the vulnerable, including many who are themselves oppressed, is what justifies penalizing these grave wrongs through incarceration.

There is of course a weighty moral proscription against subjecting others to physical force and confinement. But this proscription is conditional. It depends on a person not acting in an unjustly aggressive way toward others. Those who wrong others in ways that typically cause great harm cannot reasonably object to the unpleasant and coercive treatment their own wrongful conduct has called forth, provided such treatment is necessary to prevent harm to others.

This use of hard treatment, a form of preventative force, is neither dehumanizing nor unfair, at least not when prisons are humane and courts operate justly. Forewarned by the public legal proscription and equipped with the capacity for rational and free action, offenders had an adequate opportunity to avoid this unwelcome and unpleasant treatment. They could have refrained from serious wrongdoing but chose not to. They, through their own willful actions, have created a situation where others are morally permitted to take strong measures against them to avoid grave harm to themselves. It is this problem of wrongful aggression, an unfortunate reality of human social relations, that generates the necessity for a proportional response to thwart the threat of harm.

What I am identifying are the moral permissions and constraints on getting others to do things they already have overriding reasons to do but at times refuse to. When people refuse to

listen to moral reasons, we are sometimes permitted to use coercive means to alter their behavior, particularly when we or others would otherwise be gravely harmed. But their refusal to listen does not mean that the state no longer has a responsibility to respect their rights or that they have somehow surrendered their right to just and humane treatment. In protecting the vulnerable from the unjust aggression of others, the state should honor as many of the aggressor's ordinary rights as is compatible with securing people against harmful wrongdoing.¹⁹

Now, some persons are not so much unwilling as *incapable* of recognizing and responding appropriately to moral or prudential reasons. This could be due to youth, cognitive or emotional disorders, developmental impairment, or mental illness. The rational agency of these persons is so underdeveloped, diminished, or compromised that it would be wrong and pointless to hold them accountable for their wrongful acts. These persons require treatment, care, and support but not punitive action. If they must be temporarily confined and isolated to prevent harm to others or self-harm, this should be in a mental-health facility, not a prison.

Such involuntary confinement to a psychiatric hospital, though not punishment, is *incarceration*—the institutionalized practice of forcibly confining people within an enclosed space, segregating them from the general public, claiming custodial guardianship over them, and subjecting them to institutional rules of order. The same is true of the involuntary quarantine of those with extremely deadly communicable diseases and the confinement of captured enemy combatants in a war. And so if these modes of incarceration are, at least sometimes, morally permissible (and I think they are), incarceration *as such* cannot

be inherently dehumanizing, at least not if all dehumanization is immoral treatment and a violation of human rights.²⁰ The problem would have to be with certain uses, purposes, or functions of incarceration.

Abolitionists could object that this account of agency exaggerates humans' capacity for moral and rational action or that it fails to appreciate how the agency of the oppressed has been compromised by the structural violence of unjust institutions. They might add that prisons are filled with unjustly disadvantaged people who have themselves been victims of serious wrongs (for example, sexual assault or child abuse), sometimes the same wrongs they have committed, and that this victimization and trauma can explain their moral failures and trouble with the law. Treatment, not punishment, it could be argued, is the appropriate response to their harmful conduct.

Davis says, however, that she is not against holding individuals, even deeply disadvantaged persons, accountable for their harmful acts.²¹ Skepticism about the agency of those who themselves have been victims is not, in any case, something Davis could consistently endorse, as she calls for social movements centered on achieving justice; and this call presupposes that human beings, including those who are oppressed, are ordinarily capable of recognizing and acting on considerations of justice. A purely rehabilitative or therapeutic approach to crime fits uneasily with a conception of the oppressed as agents of radical social change whose defiance of law is sometimes a conscious act of political resistance. Prisoners, on Davis's account, do typically possess and exercise agency in the sense described here (see Chapter 1). Indeed, a stable and just social order

would be impossible if there were no feasible circumstances under which individuals could, by and large, be expected to comply with what justice demands despite sometimes being tempted or inclined to do otherwise.

Some abolitionists claim that the state dehumanizes those within its territorial jurisdiction when it uses violence (or the threat of violence) against these persons, even when it does so to prevent wrongful violence.²² Yet it is hard to consistently maintain that ordinary citizens are permitted to engage in defensive harm to protect themselves or others from wrongful aggression but insist that state officials are never permitted to use force to reduce the incidence of murder or rape. Indeed, many radical abolitionists believe that revolutionary violence is sometimes justified, whether in the struggle against capitalism and fascism or in national liberation movements against colonialism. Among abolitionists who might disapprove of violent social revolution, many still celebrate slave revolts and defend the right of armed self-defense against illegitimate state violence. Presumably, such actions, though violent, are not dehumanizing.

There is also the commitment of abolition feminists and organizations like Survived & Punished to defend criminalized survivors of gender and sexual violence.²³ Consider the famous case of Joanne (“Joan”) Little.²⁴ On August 27, 1974, Little was being held at Beaufort County Jail in North Carolina on charges of breaking and entering when Clarence Alligood, a jail officer, entered her cell with an ice pick hoping to compel Little into sex. Little managed to stab Alligood with the ice pick (some eleven times) and escaped from the jail. Alligood died from his wounds. After a highly publicized weeklong law-enforcement

hunt, Little surrendered and was charged with first-degree murder. Little claimed she had acted in self-defense against attempted rape. Many noted black leaders and artists strongly supported her, and a “Free Joan Little” movement emerged, with hundreds of supporters rallying outside the courthouse during her trial. In fact, in a June 1975 article for *Ms. Magazine*, Angela Davis defended Little’s actions as a courageous act of self-defense and resistance to sexual assault in prison.²⁵ After hearing testimony from Little and from other black women survivors of Alligood’s sexual assaults, a jury acquitted Little of the murder charges. I doubt that many abolitionists would claim that Little’s violent actions in self-defense dehumanized Alligood.

The only way to coherently affirm that revolutionary violence, slave rebellion, or violence in self-defense is sometimes permitted but that state violence is always illegitimate is to defend anarchism—to argue that no state has the authority to use physical coercion or intentional harm to enforce laws because a state, no matter how fairly or benevolently it operated, could never have a rightful claim on others’ obedience to its laws.²⁶ Anarchists deny that state-legal authority (and sometimes any hierarchical social organization) is ever legitimate, and accordingly many oppose *all* state sanctions for lawbreaking, not just incarceration. There are anarchists who are also prison abolitionists.²⁷

Yet anarchist commitments don’t necessarily rule out the use of incarceration to prevent or reduce serious wrongdoing. Charges of wrongdoing, trials, and punishment can, and do, occur in communities that are not organized as states, as with many pre-modern traditional societies. This kind of treatment, an anarchist might allow, is the province of stateless communities, as opposed to an exclusive prerogative of territorially sovereign

states (here understood in the Westphalian sense). A self-governing (though non-state) community could come to consensus that the practice of imprisonment is the most effective, most humane, and fairest way to limit serious wrongs and thereby maintain a flourishing community.

Prison reformers generally accept that it is sometimes necessary and justifiable to use harm to prevent harm. Some abolitionists, however, reject the use of harm to address harm. The pacifist abolitionist (who might also be an anarchist) thus does have a consistent position on the use of harm. Some pacifists do not merely oppose killing, state violence, and war but are against all violence and coercion. Therefore, it is easy for them to explain why they abhor and reject prisons. Imprisonment, as a form of involuntary confinement that curtails prisoners' basic liberties, necessarily involves the use of force and the intentional imposition of harm. It is a violent practice. The challenge for pacifists is to explain convincingly why there is a duty to abstain from violence even when we are wrongly threatened by it and even when aggressors will not otherwise be contained or deterred.

I doubt we have a duty to absorb or submit to the harm that others wrongly seek to inflict upon us. I also doubt we have a duty to always choose flight or supplication when violently threatened. It would take a lot to persuade me that harming others, particularly when the harm is nonlethal, is *always* unjustified. To be sure, pacifism raises interesting philosophical questions about the political morality of nonviolence. I won't explore them further, though. A pacifist abolitionism is not the form of abolition that I find most challenging or compelling. And Davis does not use pacifism as a premise in her arguments against prisons. Indeed, the form of black radicalism from which Davis's

anti-prison activism initially emerged, and for which I have much sympathy, positioned itself in stark opposition to the mainstream Civil Rights movement's commitment to rely solely on nonviolent resistance to fight injustice (see Chapter 1).

Imprisonment as Slavery

As we saw in Chapter 1, many influential black radical thinkers—George Jackson, Huey Newton, and Assata Shakur—have compared prison to enslavement. Davis herself maintains that “slavery continues to live on in contemporary institutions—as in the cases of the death penalty and the prison.”²⁸ She states that there is “a clear relationship between the rise of the prison-industrial-complex in the era of global capitalism and the persistence of structures in the punishment system that originated with slavery.”²⁹ Davis tells us that because new democratic institutions were not developed to end the conditions that created American slavery, “black people encountered new forms of slavery—from debt peonage and the convict lease system to segregated and second-class education. The prison system continues to carry out this terrible legacy.”³⁰ Perhaps most famously, she claims, “obvious vestiges of enslavement persist within the U.S. prison system. The Thirteenth Amendment [to the U.S. Constitution] abolished slavery for all except those who have been convicted of a crime. That is why many of us have suggested that we need a modern-day abolitionist movement.”³¹

If the practice of imprisonment is akin to slavery, then prison abolition would naturally be an urgent and necessary response for all who care about justice. The two institutions—slavery and imprisonment—are strikingly similar and have sometimes

been combined. Enslaved Africans, for example, were imprisoned throughout their terrifying and deadly journey across the Atlantic during the Middle Passage. Slavery can and has taken place in the context of incarceration, as with the post-Civil War convict-leasing system in the United States.³² And the threat of incarceration has been used to perpetuate slavery or slave-like conditions. Yet there *are* differences between enslavement and imprisonment that are morally relevant to assessing the legitimacy of incarceration as punishment.

Before getting to those differences, we should pause again to register that the thesis that imprisonment is a kind of slavery is extremely radical, particularly if the paradigm for slavery is the chattel slavery that Africans and peoples of African descent experienced in the Americas. And the charge that prison is legalized slavery, if true, would have far-reaching practical implications. Slavery, understood as absolute despotism, puts the enslaved and their captors in a state of war. This kind of abject oppression, particularly when it endures over a long period, is widely thought to license the use of political violence and to void the authority of laws that permit and facilitate the practice and perhaps to invalidate the entire legal order and governing regime. For instance, the slave rebellion in Saint-Domingue and the revolutionary struggle to found Haiti as an independent nation were premised on this moral foundation.³³ Of course, the fact that a moral or political position is radical or calls for drastic action does not show that the position is incorrect. Nevertheless, we should keep the radical implications of the critique in mind as we assess its soundness and consider alternatives.

There is no doubt that slavery is a powerful and enduring symbol in black political culture. The historical memory of

enslavement has profoundly shaped black identities and continues to have deep emotional resonance among black peoples. In addition, fugitive slaves and slave revolts are generally venerated as heroic in black political culture.³⁴ It is therefore not surprising that prison abolitionists in the black radical tradition regularly invoke slavery and slave resistance when seeking to mobilize people, particularly African Americans, in anti-prison initiatives. But my aim is not to assess whether narratives about slavery and its similarity to imprisonment are effective means for inspiring political action. Rhetorical strategy, though obviously important, is not my primary interest in abolition. I am concerned with invocations of slavery in contemporary social criticism, and seek to determine whether the *substance* of this form of criticism is valid, and if so, how it bears on the disagreement between reformers and abolitionists.

Within some systems of slavery, slaveholders have (near) absolute power over their slaves. This dominion includes complete control over the body and activities of the slave, sometimes extending to the discretion to determine whether the enslaved will live or die. However, when a state's power over prisoners is legitimate, it is not arbitrary despotic power. Human rights requirements, constitutional restrictions, and the democratic authority of legislative bodies properly limit the state's power to control and shape the lives of prisoners. Imprisonment cannot be permissibly imposed without satisfying due process requirements—just searches, freedom from coerced confessions, habeas corpus, rights to defend oneself against charges, access to legal counsel, impartial trials, fair sentences, opportunities to appeal court judgments, and so on.

Moreover, it is not a necessary feature of imprisonment that prisoners are sold, leased out, or used as collateral in commercial deals. Ending the practice of commodifying prisoners does not require the abolition of prisons as such. Institutionalized custodial confinement need not entail that the state has property rights over a prisoner's body or labor. Nor does claiming that incarceration is sometimes legitimate imply that prison officials are permitted to use torture or corporal punishment to force prisoners to work or to ensure labor discipline.

It is true that locks, physical restraints, and guards are used to prevent prisoners from escaping. But coercive measures to prevent escape are sometimes justified, as with extremely violent patients in psychiatric hospitals or with prisoners of war. All forms of incarceration, whether or not punishment is the aim, entail significant interference with the basic liberties of those confined (freedom of movement, association, privacy, and so on).

Since enslavement and imprisonment often involve involuntary labor, the slave/prisoner analogy may seem more promising if work under coercive conditions is highlighted. Yet we should distinguish between forced labor as an indefinite or permanent condition (which is typical of slavery), and a specified and limited period of involuntary labor, as might be imposed as part of a prison sentence. The scope of the involuntary labor might also be restricted to a specific, perhaps even narrow, range of activities, and excluding things like the coerced provision of sexual services or other degrading activities. When the timeframe for and range of activities is thus limited, it is not obvious to me why prison labor couldn't be a legitimate penalty for serious crimes. Some who are convicted of lesser crimes are sentenced

to periods of community service or assigned specific labor tasks. This labor is not voluntary either, but its imposition can sometimes be justified.

The objection to prison labor cannot be that it combines two different types of penalty—incarceration and involuntary labor. After all, monetary fines and prison terms are sometimes combined, as are financial restitution and community service. I cannot see what principled reason there could be for forbidding such mixed penalties, provided they are proportionate to the crime and could help reduce crime overall.

Assume that an explicit period of imprisonment (for instance, seven years) is a morally permissible and proportionate penalty for certain crimes (say, attempted murder). Also suppose that limited work assignments are a legitimate punishment for criminal wrongdoing. If these assumptions hold, then it seems to me that offering a *shorter* prison term on the condition that the convicted offender work during the period of confinement is sometimes permissible. The same thing happens when community service is offered as an alternative punishment to a justified prison sentence. The reasonable assumption here is that if an offender chooses a sentence that includes prison labor over a longer prison sentence that lacks a work component, then they must regard the first as less severe.

There is a powerful counterexample to the claim that it is morally acceptable to offer a shorter prison sentence if the offender accepts work penalties. If the offer of a shorter sentence included a condition that the offender be sterilized, that would clearly be objectionable even if the offender were to accept it. In May 2017, Tennessee Judge Sam Benningfield signed a controversial court order permitting prisoners in the White County jail

to receive thirty days off their sentence if they allowed themselves to be sterilized, and several imprisoned women and men agreed to the arrangement.³⁵ This outrageous “offer” might lead one to conclude that so-called alternative penalties are always unjust because they are *coercive*. Once incarceration is the sentence (particularly when the sentence is long), we can expect some convicted persons to do almost anything, even self-mortification or degrading acts, to reduce their prison time.

On the other hand, if the offer of a shorter sentence included a condition that the prisoner regularly see a psychotherapist, undergo treatment for a drug use disorder, or participate in vocational training, this strikes me as much more acceptable. Perhaps this is because these alternative penalties (though maybe initially regarded as unwelcome by the prisoner) could help the imprisoned person, at least in the long run. This is a good reason to ensure involuntary prison labor benefits prisoners in some way other than simply shortening their time in prison. They could, at least upon reflection or in retrospect, come to endorse the value of such work.

Not only could sterilization irreparably harm prisoners; it would, if not freely chosen, wrongly interfere with their reproductive freedom. Perhaps another lesson of the counterexample is that the alternative sentence must take the form of a penalty that the state has the authority to impose. Sterilization cannot be a legitimate penalty, whether taken alone or added to a prison term. But a limited work assignment could be, as for example with community service.

Compelled community service and prison labor can be justified on grounds of deterrence and rehabilitation. Both forms of work are typically disagreeable, are not freely chosen, and are

generally regarded as burdensome. Therefore, the threat of their imposition can serve as an incentive to avoid breaking the law. Involuntary labor, when it is of the right sort, could also instill discipline, useful skills, cooperative habits, and self-esteem. This moral reform could thus reduce the likelihood that the prisoner, once released, will commit further crimes.

Some abolitionists might accept that prison labor that serves the common good in a just society is permissible. Yet they might object, not so much to the fact that prison labor is involuntary, but to the fact that such compelled work would be performed under the dominion and for the purposes of a *private will*—a corporate power, rather than a public one. Coerced privatized prison labor—particularly when done for corporate profit—arguably makes such work a form of involuntary *servitude*. We each have a basic interest in having the freedom to abstain from working for companies that produce goods and services we strongly disapprove of or that have practices (including labor practices) we object to. We should not be forced to submit to the arbitrary commands or to serve the private ends of another.

We do not, however, have a similar liberty with respect to public service, as we can justifiably be required to provide, say, military service and jury duty, at least when the background social structure is just and the governing regime legitimate. Here we would be submitting to the public will under the rule of law, and our efforts would contribute to maintaining the just social order from which we benefit. If the goods and services produced through prison labor were used by other state agencies in the provision of public goods, this could not be reasonably construed as involuntary servitude. Moreover, requiring prisoners

to contribute labor that serves the public good would be one way for them to repair the civic bonds that have been frayed due to their criminal conduct. It could pave the way for reconciliation with their fellow citizens.

It could be objected that prison laborers are denied freedom of occupational choice, as they are usually assigned their tasks or must choose among a narrow range of options. Prisoners also typically lack a recognized right to organize, strike, and bargain for better work conditions. Perhaps these labor freedoms (like freedom of religion and freedom from torture) are liberties that cannot be curtailed even if one has committed a serious crime. So there might be a case that prison labor is unjust (if not a form of slavery).

The case would face some difficulties, though. The state, through imprisonment alone, would be interfering with what appear to be even more fundamental liberties—freedom of movement, association, privacy, and so on. But maybe this interference is necessary for crime control in a way that interfering with labor freedoms is not. In addition, a sentence of community service would also curtail labor rights but does not appear to be inherently unjust. Still, prison reformers could, and probably should, insist that incarcerated workers have legal counsel or chosen representatives (if not unions) to advocate and negotiate on their behalf regarding labor assignments, compensation, and work conditions.

But let's suppose it is always wrong to use prison labor to penalize legally prohibited wrongdoing. In a society that is otherwise just, would it also be unfair to require convicted prisoners to help reduce the costs of their room and board? I am not certain that it would be. It would not be unfair, for example,

to expect prisoners to prepare their own food, clean up after themselves, and do their own laundry rather than have the public pay for these services to be provided at no cost to prisoners. This work is comparable to ordinary domestic labor. If this type of prison work does not run afoul of fairness, why would it be unfair to expect prisoners to also help defray the costs of their clothing and food by producing goods or providing services useful to public agencies? Even Marx allows that some of the work a wage laborer does is *necessary labor* (the work needed to meet the material needs of workers and their dependents). The capitalist, recall, only appropriates *surplus* labor—that is, the labor beyond necessary labor.

Incarcerating prisoners in a humane way is expensive and inevitably draws on public revenue that could be used for other purposes. When prisoners have dependents, the public might have to supplement the income of their families. And, arguably, all in society who are able should, on grounds of reciprocity or productive justice, contribute *something* to reproducing the social and material conditions that sustain our common life together.³⁶ So the requirement that prisoners work in some capacity is not, as such, unjust, even if work *as punishment* is.

Slaves are generally unpaid or paid very little. One could object, then, that prisoners forced to work are slaves insofar as they are not paid, not paid a market wage, or not paid a fair wage.³⁷ But suppose they were paid a market wage. This compensated labor would raise the already considerable costs to the public of taking care of prisoners' basic needs. Would state confiscation of a portion of these wages to defray the expense of incarceration be unfair? I am not sure that it would be. It would be comparable to a tax or to garnishing wages for an unpaid public debt.³⁸

Nevertheless, there is little doubt that prisoners should receive higher wages than they typically do. (For instance, in no state in America are they paid anywhere close to the federal minimum wage, which is itself egregiously low.³⁹) Yet better pay for prison labor would still be reform, not abolition. Or if better pay for prison labor does count as “abolition,” then many reformers are abolitionists, and the call to abolish the prison turns out to be a moderate demand—which is not to say that it would be easy to secure it.

I would emphasize that the opportunity to work while in prison could be of considerable value to prisoners themselves, at least under current economic structures (for example, where there is an extensive labor market and no unconditional guaranteed basic income). It would give prisoners a chance to show that they are reliable workers and could help them establish an employment record during their period of confinement, which could improve their employment prospects once they are released. This work history could, in addition, be used to show that they are ready to be released, that they will be able to secure and keep a job and thus are less likely to turn to crime. The work itself gives prisoners something constructive to do. Unstructured prison life is intensely boring and monotonous, and too much prisoner idleness often leads to mischief and interpersonal conflict, which needlessly adds to the burdens of prison.

Imprisonment is extremely hard on the families of prisoners and often strains (and sometimes breaks) familial bonds. If prisoners have opportunities to earn money, they can financially assist their families, if only in small ways, and this can help to strengthen or repair family ties. A gift from an imprisoned parent can mean

a lot to a child and reduces the shame prisoners sometimes feel for being unable to play a larger role in the care and raising of their children. Through paid work prisoners could also earn money to buy things they want (small creature comforts), which lessens the financial burden on their families. Or they could save some money to ease their reentry into society.

Moreover, when prison labor plays a key role in the maintenance and operation of the prison, this gives prisoners some leverage in bargaining for better working and prison conditions. They can then withdraw their labor in protest (or threaten to do so) and may thereby gain some concessions. Where all the necessary work is done by prison staff, prisoners have little power they can wield collectively (apart from, say, rioting or hunger strikes).

Generally, prisoners should be permitted to exercise as many of their basic liberties as are compatible with their prison sentence and the requirements of custodial care. This means allowing prisoners to exercise many of their political liberties and economic freedoms, as well as permitting them regular contact (through phone calls, letters, electronic communication, and in-person visits) with persons outside the prison where feasible. If we think of their penalty as hard treatment designed to control crime (through deterrence, rehabilitation, or incapacitation) rather than as civic death (the suspension of all their basic rights), exile (banishment from civil society), or retribution (imposing the suffering they deserve), then this makes perfect sense.

No reasonable person thinks that when offenders are penalized through fines or mandatory community service, they should also lose their social, civic, and economic freedoms. These freedoms are properly curtailed only insofar as this is necessary to

impose or administer a just sentence. We could and should construe imprisonment similarly. So, for instance, facilitating and compensating prison work could be a way of respecting prisoners' right to work and earn money. Thus, prisoners should at least, where feasible, have the *option* (and perhaps be strongly encouraged) to work while incarcerated.⁴⁰

What this series of reflections has revealed is that the practice of imprisonment is not, or at least need not be, a form of slavery (where enslavement is understood as inherently unjust). Yet the main problem with the slave labor/prisoner labor analogy is that someone convicted of a serious crime (unlike, say, a chattel slave) has been judged to have committed a grave wrong, and prison labor is the penalty for the transgression. If a person's crimes do not permit the state to curtail their liberties to control crime, then imprisonment, even without involuntary labor, is effectively *kidnapping*—the wrongful abduction and confinement of another against their will. Obviously, a state cannot permissibly punish someone—whether through imprisonment, involuntary labor, fines, property confiscation, or suspension of privileges—on the grounds that the person is a member of a stigmatized, disliked, or powerless social group. If it can justly punish at all, it can do so only in response to an unlawful act that is legitimately prohibited; and it can impose such penalties only on the person(s) who committed the act.

The abolitionist criticism that practices of imprisonment are continuous with slavery is most compelling when understood as a critique of some past or existing prisons. It is a forceful and appropriate moral condemnation of prisons as they once were and as some now are. Some prisons do share features with

slavery that make them morally unacceptable. But it is not a powerful criticism when applied to all prisons or to prisons as they might be if suitably reformed. Nor does it help to resolve the reform-versus-abolition debate. The moral charge that prisons are slavery would justify abolition only if the practice of imprisonment could not exist without sharing objectionable features with the practice of enslavement.

Prisons as a Legacy of Slavery

Davis and like-minded abolitionists identify surprising *historical* relationships between enslavement and imprisonment. Different historical links can be postulated, and the practical significance of each link—for example, whether it points toward reform, demands abolition, or has no practical import—varies. I see this criticism as offering a *genealogical critique* of the prison, and consider several ways to understand the historical connection between enslavement and imprisonment.

Within the critical theory tradition, genealogical critique does not always aim to show that the practice being examined should be abandoned or replaced. It needn't imply the automatic rejection of the object of critique. The objective of the historical analysis can sometimes be to free us from a too-easy acceptance of the practice, from a complacent and unreflective endorsement of it.⁴¹ The critical analysis often works by demonstrating the role of contingent power relations in the origins of the practice, which dissolves the sense of inevitability that surrounds it. The genealogical critique can free, if not radicalize, our imagination, empowering us to experiment with different ways of doing things or at least to consider new possibilities.

Many people, without giving the matter much thought, treat the practice of imprisonment as natural and inescapable, as a necessary feature of social life that has always been and thus will always be with us. Captive to this picture, they do not see the need to justify or scrutinize the prison. Genealogical critique can break the hold of this perspective (which many are unaware they are in the grip of), enabling us to take a more critical stance toward the practice and possibly leading us to make significant changes to it. I think we can read Michel Foucault's *Discipline and Punish: The Birth of the Prison* (1975) as offering a critique of this sort (though other interpretations are possible).

To the extent that Davis's genealogical critique of imprisonment (tracing the genesis of prisons to practices of enslavement) frees our imagination, encourages reevaluation, and prepares the way for arguments for prison abolition, I regard it as immensely valuable. We should not take the prison for granted or regard its justification as self-evident, and the practice is ripe for rethinking. However, if the genealogical critique is meant to be part of the case for abolition—that is, to be an argument for a movement to end the use of prisons—it has limitations.

The genealogical critique holds that the contemporary practice of imprisonment is a “legacy” of slavery. Let's consider this the standard formulation. Alternative formulations include asserting that prisons “are a structural inheritance of slavery,” “are an institutional descendant of slavery,” “are a heritage of slavery,” “have historical resonances with slavery,” “have their roots in slavery,” “exhibit traces of slavery,” or “are a surviving vestige of slavery”—all formulations to be found in Davis's writings on prisons.⁴²

Now this way of putting things—that existing imprisonment practices are a legacy of slavery—might suggest that slavery and

imprisonment are not only both wrong but wrong for the same reason. This is an argumentative strategy that Marx often employed in his critique of capitalism. He would identify common features of slavery and serfdom (features that were then, and now, commonly held to be wrong) and then attempt to show that capitalism had these same features despite appearances to the contrary. All three systems, he maintained, are dehumanizing and despotic forms of involuntary servitude. Davis, too, can be plausibly read as claiming that imprisonment is, essentially, a form of slavery and should therefore be opposed on the same moral grounds. Yet this argument, already addressed, is not a genealogical critique, as its soundness does not depend on a historical connection between slavery and the prison. It depends only on both practices being wrong for the same or similar reasons.

“Legacy” could mean something like “remnant” or “outdated”—in effect, an obsolete holdover from another time, as when Davis speaks of the “vestiges” of slavery found in prisons.⁴³ The practice of imprisonment should have fully collapsed with the abolition of slavery, yet its ruins continue to impact our present. Here the general moral takeaway is that prisons had nefarious uses in the past (to facilitate and extend slavery, say), and they serve no useful purpose in the present, nor will they in the future. However, this would beg the question against reformers, who believe that incarceration has good and bad uses in the present and, with appropriate reforms, could be used solely for legitimate purposes in the future.

To have “roots” in slavery might suggest that slavery *nourishes*—that is, remains a causal ingredient in reproducing—current practices of imprisonment. Slavery, even long after it was

abolished in the United States, has caused generations of people to be deeply disadvantaged. This unrectified disadvantage makes many vulnerable to incarceration. Prisons are full of people who were socioeconomically disadvantaged prior to their imprisonment.⁴⁴ The descendants of American slaves continue to be among the most disadvantaged groups in the United States, and also represent a strikingly disproportionate share of the prison population. If an explanatory cause of this overrepresentation among the imprisoned is the fact that the harms of slavery have not been fully rectified or compensated, then this clearly calls for redress.

Yet it is unclear why such rectification should take the form of prison abolition. The root of the problem is not the existence of prisons but pervasive and deeply unjust socioeconomic disadvantage more broadly. The appropriate response would therefore be to remove the disadvantages that make the descendants of slaves vulnerable to being arrested and imprisoned. This would mean not only ensuring due process and the rule of law but also preventing racial discrimination, securing equal educational opportunity for all, enhancing employment opportunities for the jobless and underemployed, securing housing for the homeless, protecting worker rights, increasing income subsidies for the poor, de-concentrating and redistributing wealth, guaranteeing universal health care, politically empowering the socially marginalized, and other such measures.

It could be argued that what has been “inherited” from the era of slavery are ideologies and institutions (racism and prisons) that *perform the same functions* in the present. In effect, these functions persist as inherent (or near inherent) features of prisons and related ideologies. This is a version of the

“ineradicable logic” of institutions thesis, which I will address in the next chapter.

If “legacy” means something like “inherited from” or “handed down from the past,” we still must ask whether the *objectionable* features were also bequeathed and if so, whether these can be removed without destroying the inherited item itself or turning it into something else entirely. A business that operated according to racist values in the past when in the hands of its previous owners might operate now in a way that satisfies requirements of racial justice because the business is under the direction of new, antiracist owners. Institutions are more like property than like genes. Those who “inherit” institutions have considerable control over what they will be like going forward, because they can adopt different aims, can change institutional rules and procedures, can alter the rights and responsibilities of those who participate in the institution, and can choose new personnel, including new leadership. Consider the many multigender and multiracial colleges and universities (like my home institution) that used to be open only to economically privileged, Protestant, gender-conforming white men.

This point is entirely consistent with—indeed, a necessary feature of—a broadly historical materialist outlook. Marx thought that the means of production in the hands of the bourgeoisie were instruments of subjugation and exploitation. But once the proletariat takes hold of them, placing them under worker control and no longer using them as private capital to maximize profit, these means—whose immense productive power has been cultivated under capitalism—will be the basis for freedom, community, and material prosperity for all. The

fact that these highly developed means of production would be a legacy of “wage slavery” is not a good reason, according to Marx, to refuse to use them under socialism.

Marx made a similar argument about the state itself. He believed that under capitalism the modern bureaucratic state functions as the executive committee for arranging the affairs and advancing the interests of the bourgeoisie. Yet, after the revolution, the state would be an emancipatory instrument in the hands of the proletariat, who would use it to dismantle the oppressive elements of capitalism and lay the groundwork for communism.

Perhaps the penal arm of the state (like, say, intergenerational monetary bequests) is a feature of the old and decaying social order best discarded in the new. This is one way of interpreting the call for prison abolition—that when the truly free society is successfully built, it will be, and should be, one without prisons. This claim cannot be established, however, by merely pointing to the fact that prisons were forged within and have been inherited from an unjust social order. Capitalism, by Marx’s own accounting, develops many things (including labor-saving technology and efficient ways of organizing work) that we can expect to be preserved in a socialist society.

Reform and Redress

Prisons as we know them, now and in the past, are often dehumanizing, horrid, even torture chambers. Many existing prisons have far too much in common with slavery.⁴⁵ Injustices in the wider social structure can also affect the fairness and legitimacy of penalizing crime through incarceration and prison labor.

Imprisoning members of oppressed groups for serious wrongdoing, though sometimes necessary to protect the vulnerable, is a morally troubling practice. These prisoners are due redress in the form of corrective justice. Had they received such redress, these prisoners may not have found themselves running afoul of the law. Forcing them to work while incarcerated, though not slavery, can be a substantial insult, particularly when they are the descendants of slaves. The state, whose very legitimacy depends on securing just conditions for all, lacks the moral standing to condemn much of the wrongdoing it penalizes, as it is often responsible, in part, for the circumstances that lead to crime. And it cannot justify requiring the unjustly disadvantaged to work to cover the costs of their imprisonment when it has so utterly failed to ensure justice in the society from which these prisoners come.

But punishing the justly convicted by forcing them to do unpaid work is not always unfair, let alone an instance of slavery. The situation might seem otherwise because of injustices that lie elsewhere, including within the broader criminal justice system. Often the underlying problem is that the prison sentence is unwarranted or unfair given the nature of the crime (for instance, needlessly harsh). Or, given structural injustices in the broader society, the state lacks the moral standing to punish the criminal offense (for example, when it penalizes economic crimes among the poor). Or prison conditions are already so needlessly severe that forced labor would be cruel and degrading. And, all too often, a prisoner did not commit the crime for which they were convicted, or, even if they did, due process standards were not adequately met and so they were not convicted fairly.

All this, I believe, the prison reformer can readily, even strongly, endorse. Indeed, for these reasons, some existing prisons and perhaps some whole prison systems should be closed. Yet these conclusions, as distressing and infuriating as they are, do not constitute a compelling case for abolishing the general practice of imprisonment. Prison, no matter how humane or well administered, is an undesirable place to be. There can be no doubt about that. This of course is part of the point, at least insofar as the incarceration is a form of punishment. So far, what the abolitionist case against prisons suggests is the urgent need, not only for prison reform, but for broader social-structural reform. In this way at least, abolitionists and radical reformers are often, despite appearances, on the same side.